IN THE NATIONAL COMPANY LAW TRIBUNAL : NEW DELHI

COURT-III

CAA-29/ND/2019

In the matter of :
Global Fibres and Fabrics (P) Ltd and Global Images India (P) Ltd **.. PETITIONER**

SECTION
Under Section 230-232

Order delivered on 27.2.2019

Coram :
Sh. R. Varadharajan,
Hon'ble Member (Judicial)

For the Petitioner /Op. Creditor : -
For the Respondent/Corporate Debtor :
For the Intervener :

ORDER

Learned AR for the Petitioner Company is present and represents that dispensation of the meetings was ordered as per the directions dated 15.10.2018 and that this petition has been filed for sanction of the Scheme of Amalgamation as contemplated between the petitioner Company. Perusal of the Order dated 15.10.2018 shows that vide the said order, this Tribunal had directed the petitioner Companies to file their petition for approval of the Scheme for Amalgamation within 7 days from the date of the said order. Ld. AR for the petitioner represents that there are valid reasons for delay, however, in the absence of an application for condonation of delay, the same cannot be entertained as it is seen from the Tribunal record that petition has been filed on 25.1.2019. This Tribunal is hence not in a position to take up this petition in the absence of any application for condonation of delay. Let this application be returned to the petitioners and the petitioners will move this

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application for condonation of delay so that this petition could be taken up for directions, if so desired.

Let the Registry return this petition and let the same re-presented along with the application for condonation of delay within 7 days. Upon the Application being filed and petition being re-presented, the matter to be listed.

(R. VARADHARAJAN)
MEMBER (JUDICIAL)

Surjit
27.2.2019